Espina-v-Aguiar-Mediation-with-David-S-Perwin_Youtube_wCDzMYgaz1E_720p

[00:00:01] Automated Voice: You have not entered any numbers. Please re-enter the meeting password followed by pound. You are in the meeting now. There are three participants in the meeting. You have been added to the waiting room. You cannot talk or listen until the host admits you to the meeting. You're now in a breakout session.

[00:00:25] Reinaldo J. Aguiar Marcano: Hello? Hello? Uh, yes. Hello? Yes.

[00:00:30] David S. Perwin: Good morning.

[00:00:32] Reinaldo J. Aguiar Marcano: Yes, good morning.

[00:00:35] David S. Perwin: Okay. Um, sorry, I was over there, um, when I was kind of just trying to get a background from both sides. So I started with them 'cause they had joined first, but, um, I have them in a separate breakout room. I have you in a breakout room. And, uh, I guess the first thing I wanted to do is just ask you if you'd, uh, ever been through the mediation process before?

[00:00:57] Reinaldo J. Aguiar Marcano: Yeah, I've done mediations before.

[00:01:00] David S. Perwin: In, in, in what context?

[00:01:03] Reinaldo J. Aguiar Marcano: Um, I'm sorry. I can't, I can't talk about that because I signed a non-disclosure agreement when I went through that.

[00:01:10] David S. Perwin: Okay. But not a family case?

[00:01:13] Reinaldo J. Aguiar Marcano: Sorry, not a what?

[00:01:15] David S. Perwin: Not, not a case regarding your family?

[00:01:18] Reinaldo J. Aguiar Marcano: No, no, no. Never.

[00:01:19] David S. Perwin: You've been in mediations regarding business?

[00:01:22] Reinaldo J. Aguiar Marcano: Yes.

[00:01:23] David S. Perwin: Okay. All right. I mean, the mediations really work the same in all processes. I just want you to know that I'm, you know, I'm gonna go back and forth between the rooms to see if I can broker an agreement between the two of you. Um...

[00:01:36] Reinaldo J. Aguiar Marcano: Okay.

[00:01:37] David S. Perwin: The court requires you to do this process, and, and I'm just going to tell you, you know, from a family court standpoint, the reason that they do that is because really, number one, um, they just have so many cases they can't hear every single case. And, and through mediation, 80 percent of the cases settle in mediation. And so that helps them manage the number of cases they have to hear. Um, I was the judge in, in the court that you are in back in 2013, 14 and 15. And then, um, we created a -- the state created another court and the governor appointed me to take that one over. And then I was in that court for five years. So I, I was a judge for eight years. And then before that I was a family law attorney representing, you know, husbands, wives, fathers, mothers, kids. Um, and then since I've left the bench, all I do is mediate cases. I don't represent parties, I just help the courts -- help people try to get their cases settled. So, um, what I'm here to do is try to see if I can get an agreement between the two of you. I'm not here to pick a side. I'm not here to, um, to do anything other than to see if I can get an agreement. It might mean pushing both sides, uh, beyond the position they want to, but that's how -- as you know, that's how mediation works. It's a negotiation.

[00:02:59] Reinaldo J. Aguiar Marcano: Yeah. Yeah. I understand. If I may ask you a, a couple of questions because, uh, you know, kind of important.

[00:03:04] David S. Perwin: Yeah.

[00:03:04] Reinaldo J. Aguiar Marcano: Um, so, uh, could you tell me like, what, what's -- I'm sorry for asking, but what's your name?

[00:03:10] David S. Perwin: David Perwin. You don't -- oh, I guess, you can't see me on screen...

[00:03:13] Reinaldo J. Aguiar Marcano: Yeah, no, no. I can't see you. No. No. Okay. But okay. Yeah, so just wanted to make sure that I was talking to the person in the email. Okay. Got it. Yes, I, I understand.

[00:03:23] David S. Perwin: Yeah. So just so you know, anything that we talk about in this room, if there's anything that you do not want me to disclose to the other side, you let me know and I will keep it in this room.

[00:03:34] Reinaldo J. Aguiar Marcano: Okay. I understand.

[00:03:36] David S. Perwin: Um, the other thing is, um, I do not report back to the judge about what we did today, all I will do is if we reach an agreement, I will send it to you to sign by DocuSign. I'll send it to her by DocuSign. Or if we don't get an agreement, I will just send a letter to -- uh, in the court's file that just says that you mediated, but we did not reach an agreement. So the details of what we do are not disclosed, um, to the judge directly. If we do have an agreement, it will spell out what that agreement is. So yes, the judge will know that. But anything we talk about in here, other than what's on the paper that's submitted to the court, uh, is not disclosed to the court.

[00:04:19] Reinaldo J. Aguiar Marcano: I, I understand. And I have other two questions very quickly. May I, may I ask them?

[00:04:24] David S. Perwin: Yes, go ahead.

[00:04:25] Reinaldo J. Aguiar Marcano: Yeah, so first question is, are you still part of the bar? Like, are you, um, registered in the bar of Texas? I'm just curious whether you're practicing or you could practice law, uh, still, or you've retired completely and did not register anymore?

[00:04:38] David S. Perwin: Well, no. I'm still a licensed attorney, but I don't, I don't represent parties by choice.

[00:04:42] Reinaldo J. Aguiar Marcano: Okay. No, I, I, I understand. And the other question I have, um, this field of mediation, is this a regulated profession? Like is there a body that regulates your work? Or is it like, um, you know, everybody for themselves?

[00:04:54] David S. Perwin: I mean, there, there are mediation organizations, but they're -- you know, they, they don't -- it's not really regulated, actually. Um, you know, what we do in, in our county is that you have to have 40 hours training of, of basic mediation.

[00:05:09] Reinaldo J. Aguiar Marcano: Okay.

[00:05:09] David S. Perwin: And then you have to have a 24 hour, uh, family law, um, course that you also take.

[00:05:17] Reinaldo J. Aguiar Marcano: I understand.

[00:05:17] David S. Perwin: Um, and that's the, that's the minimum requirement...

[00:05:19] Reinaldo J. Aguiar Marcano: So, so training and, training and certification. Yeah. But no, I, I, I just wanted to know if there were like -- because you know, like you see like, this is a very sensitive matter, right? There's a child custody issues, there are a lot of things. Right? And you mentioned, you know, that you may push the side -- one side or the other, you know, beyond their comfort zone.

[00:05:36] David S. Perwin: No. I'm, I'm gonna push both sides.

[00:05:38] Reinaldo J. Aguiar Marcano: Both sides.

[00:05:39] David S. Perwin: I push both sides. [Overlapping 00:05:39].

[00:05:39] Reinaldo J. Aguiar Marcano: Right, right, right. But, but -- no, no, no. I understand. I'm not implying anything, you know, malicious or anything, but what I'm saying,

right? Like it's, it's, it's a very sensitive issue. And I just wanted to understand if there are any regulations that regulate your role in this, right? Or, or is there are any laws that regulate. Because like, you, you understand, right? Like, uh, imagine that your child's, uh, you know, wellbeing was at a stake and somebody else, you know, third party tells you, you know, I'm gonna -- I may push both sides, you know, outside of the comfort zone. Um, you know, you may be worried about, you know, what that exactly means, right? And, and if there's any recourse in case things, you know, don't, don't -- but, but, okay, I understand. So you're saying basically it's an unregulated profession and you know, there's only an organization of mediators, but it's not -- and, and the, the bar of Texas, so no, I guess it doesn't have anything to do with this because anybody can be a mediator, right? Even, even, even if you're not an attorney, you could be a mediator, right?

[00:06:33] David S. Perwin: That's true. That is true.

[00:06:35] Reinaldo J. Aguiar Marcano: Okay.

[00:06:35] David S. Perwin: But I'll tell you that what we're going to use though, um, to apply anything that we're doing is the Texas Family Code.

[00:06:42] Reinaldo J. Aguiar Marcano: Exactly. And because you're a judge -- you were a judge, and you are a registered attorney, you are still bound by, you know, the moral obligations of lawyers registered on the bar. Right? And by the, all the laws that regulate that, I mean, you're still a lawyer, right? So, I mean, that gives me comfort, that you're gonna do the best that you can. Thank you so much for clarifying.

[00:07:00] David S. Perwin: Well, people come, people come to me to mediate cases because of my judicial experience and because of my family law background. So, you know...

[00:07:09] Reinaldo J. Aguiar Marcano: Exactly.

[00:07:09] David S. Perwin: ... because I was a judge for eight years...

[00:07:11] Reinaldo J. Aguiar Marcano: It's amazing.

[00:07:12] David S. Perwin: ... and I [indiscernible 00:07:12] cases like this, um, um, people come to me because of the experience that I have. But I also represented children before I was a judge in, in, uh, contested cases. I represented, like I said, uh, fathers and mothers. And, um, I did all of that before I was a judge. And since then -- uh, well, I used to mediate before I was a judge also, but, um, coming off the bench and doing this, um, being a judge kind of lets people know that you have seen lots of cases, you have lots of, uh, scenarios that you have seen that help you try to come up with creative ideas and try to settle these cases.

[00:07:55] Reinaldo J. Aguiar Marcano: Got it.

[00:07:55] David S. Perwin: So huge plus to being a, uh, to being a judge. I'm not, you know, I'm not actively doing any -- I do arbitrate cases sometimes where people come to me 'cause they want me to make the decision. They don't want to go to the current judge.

[00:08:08] Reinaldo J. Aguiar Marcano: Yeah. Yeah.

[00:08:09] David S. Perwin: Um, that's by agreement. It's not any other, any other way. And, and today, what we're gonna do this morning is anything that's going to happen can only happen if you agree and she agrees. I cannot make you do anything.

[00:08:22] Reinaldo J. Aguiar Marcano: Okay.

[00:08:23] David S. Perwin: And I can't make her do anything. But I can point out the consequences on what I think will happen in the court to give you a perspective and give her a perspective. But ultimately, it's a matter of you wanting to agree and her wanting to agree.

[00:08:36] Reinaldo J. Aguiar Marcano: Perfect.

[00:08:37] David S. Perwin: Um, there is no -- and, and if we don't get an agreement, then that gives, um, that basically is the box that needs to be checked, so you can go forward with the judge and let the judge make the decision.

[00:08:48] Reinaldo J. Aguiar Marcano: I understand. Thank you so much for explaining.

[00:08:52] David S. Perwin: Yeah. And anytime you have any questions about any of this process, um, this is a good time to ask those questions because that's why I'm here.

[00:08:59] Reinaldo J. Aguiar Marcano: Okay. Uh, yeah. Yeah. Well, not related to the process, but you, you said something that made me curious, and I'm just wondering, I don't know if you would like -- you know, if you don't wanna share, don't share. Right? But I'm just gonna ask. So you mentioned that a governor appointed you to a bench. I was wondering, was that, um, Governor Abbott or different governor?

[00:09:20] David S. Perwin: No, it was Governor Abbott.

[00:09:21] Reinaldo J. Aguiar Marcano: Governor Abbott. Okay. Got it. Thank you so much.

[00:09:24] David S. Perwin: Yeah, I didn't actually meet with him. Um, I met with, um, I guess some attorneys that worked under him and it was an interview process of...

[00:09:35] Reinaldo J. Aguiar Marcano: No. Of course. Of course. No, no. The, the governors are always super busy, you know. I, I, I've tried to meet with the governor once, and, you know, he didn't come to the meeting, so.

[00:09:44] David S. Perwin: I mean, I had met him before, but in a group session. Not, not in an individual session. But, but then, then after I was appointed, um, I was elected after that, so, um...

[00:09:55] Reinaldo J. Aguiar Marcano: Got it.

[00:09:55] David S. Perwin: ... so it wasn't just an appointment. I was, I was, uh, hired as an associate judge in the court that we're in with you. And then the governor appointed me for the new court, and then I got elected to serve a term after that. And then the next election I was -- I lost the election, and that's when I became -- uh, when I just mediated cases.

[00:10:14] Reinaldo J. Aguiar Marcano: You practice mediation. I understand. No, thank you so much for letting me, you know, get a, a, a view into, into your career and, and, you know, your background and knowledge, because that's definitely makes me comfortable.

[00:10:27] David S. Perwin: Um, where are, are -- I think I saw something that you -- I don't know, either they sent me or you sent me. Um, so are you from Venezuela?

[00:10:35] Reinaldo J. Aguiar Marcano: I'm originally from Venezuela, yes. I was born there, but I, I, I left [overlapping 00:10:39]. Oh, your wife is from Venezuela?

[00:10:41] David S. Perwin: No, not my wife, my law partner.

[00:10:43] Reinaldo J. Aguiar Marcano: Oh, okay.

[00:10:44] David S. Perwin: Um, she's from Venezuela. Um, she was my associate judge when I was the judge in the 505th. And, uh, her husband is also from Venezuela. He's a veterinarian, and, uh, she's an attorney. And obviously she used to be my associate judge, so, um...

[00:11:01] Reinaldo J. Aguiar Marcano: Awesome.

[00:11:01] David S. Perwin: ... it's, uh...

[00:11:02] Reinaldo J. Aguiar Marcano: That's good.

[00:11:02] David S. Perwin: Yeah. So...

[00:11:04] Reinaldo J. Aguiar Marcano: Great.

[00:11:04] David S. Perwin: Anyway, she's been here probably -- I think she came here when she was, you know, probably eight or nine years old. And, uh, her father worked for like a, I think an oil company, and they traveled all over the place and eventually came here, so.

[00:11:18] Reinaldo J. Aguiar Marcano: Came here, right. Yeah. Yeah. Every, everybody, everybody in Venezuela worked for, for the oil company. Like I, I did.

[00:11:25] David S. Perwin: It seems like.

[00:11:26] Reinaldo J. Aguiar Marcano: Yeah.

[00:11:26] David S. Perwin: And it seems like most of the people interesting, end up in Katy. Um, she doesn't live in Katy, but, um, a lot of her friends and a lot of people that I deal with from Venezuela are in Katy, and now they call it Katyzuela. I don't know if you've ever heard that, but...

[00:11:41] Reinaldo J. Aguiar Marcano: Yeah, yeah, exactly. Uh-huh. Yeah, yeah, yeah, yeah. Half of Maracaibo, specific city in Venezuela is that way.

[00:11:46] David S. Perwin: Yeah. That's where she's from. She's from there too.

[00:11:49] Reinaldo J. Aguiar Marcano: Oh, me too. Yeah. And Gloria, you know, the petitioner is also from Venezuela.

[00:11:54] David S. Perwin: Oh, okay.

[00:11:54] Reinaldo J. Aguiar Marcano: From, from Maracaibo. Yeah.

[00:11:56] David S. Perwin: Oh, wow. Okay. Yeah, that's exactly where my partner's from.

[00:12:00] Reinaldo J. Aguiar Marcano: So we, we, we might as well just go to court in Venezuela.

[00:12:02] David S. Perwin: Well, I'm not from Venezuela, but...

[00:12:07] Reinaldo J. Aguiar Marcano: No, no, no, no. I'm, I'm just, I'm just joking.

[00:12:10] David S. Perwin: I know. And, and, and a little bit of humor, going through a difficult time is always a good thing...

[00:12:14] Reinaldo J. Aguiar Marcano: It's always a good thing. That's what keeps me going. Right.

[00:12:17] David S. Perwin: Yeah. That's what keeps me going too. I mean, I, I love doing family law. Um, I probably would've made a lot more money going in a different area, but I do like helping people. So I'm hoping that I'll be able to help you guys, um, you know...

[00:12:31] Reinaldo J. Aguiar Marcano: To be honest, to be, to be honest with you, I don't know how you do it. You know, like -- uh, I mean, these family cases, uh, I mean, if -- I, I don't know, I'm not a lawyer, but if I was a lawyer, right? I, I would think that this is probably the most difficult part of practice because, yeah, you, you would encounter people with all these conflicts every day that -- you know, you basically, you meet people in the worst moments of their life every day. Right? I, I, I honestly, I dunno how you, how you do it.

[00:12:57] David S. Perwin: But here's the thing. Most, most people that are going through this are good people going through a bad time.

[00:13:05] Reinaldo J. Aguiar Marcano: Yeah, yeah. Yeah.

[00:13:07] David S. Perwin: It's different than me -- if I was to do criminal cases and I was dealing with really bad people, you know, I don't want to -- um, even though I would be bound to, if I, if I was, you know, if I took them as a client, I would need to represent them no matter how bad they are.

[00:13:23] Reinaldo J. Aguiar Marcano: Right.

[00:13:23] David S. Perwin: I do believe that concept, but it's not something that I choose to do. And I would...

[00:13:27] Reinaldo J. Aguiar Marcano: Yeah. It's, it's a different type of challenge.

[00:13:31] David S. Perwin: Right. Right. And then the other areas of law just weren't of interest to me. I, I, uh, I feel like, um, I can, you know, I guess add something good to the world by helping people get through these type of things. So, um, and so that's, that's kind of what motivates me, is to try to help people. And so, yeah, I want to get paid. I have three kids myself. I have a, uh, two children at, at Texas A&M, and then I have one who's 14 years old. So, um, I have three boys. And, um, you know, I mean, I have to -- I want to -- I need to support them, but I love helping families and, uh, even if it's difficult, if I can help them get through this process and that's something that, that is enriching to me as far as my life. So, um, so I'm hoping that -- I'm hoping to help you. Like even if, if I can't, I'm hoping that you'll come away with some things that are, you know, that you can take with you, um, that will be helpful in your -- in the future, whether it's the court or something beyond that. So I'm hoping that there's some positive things that can come out of this regardless, but I probably settle 90 percent of my cases.

[00:14:37] Reinaldo J. Aguiar Marcano: Nice.

[00:14:37] David S. Perwin: The average is 80. But I can't do that without the parties being willing to agree and attorneys that are willing to help the process because, um, this only happens with you saying yes and her saying yes. So with all that being said, um, I think they initiated the case. So what I, what I'm gonna do is I'm gonna go back over to, to their room, and I'm gonna get a proposal, um, from them to present to you and for you and I to discuss.

[00:15:07] Reinaldo J. Aguiar Marcano: Right. But I think, uh, and, and I'm sorry, and I, I, I know you have a plan, right? And I respect that. But I think given the circumstances of the case and this -- there, there are some things that are particular to the case and before we, we go with the --

you know, before we go out through all that process, if I may suggest something, it's just a suggestion, right? If you think it's not a good idea, we'll do it your way, but.

[00:15:26] David S. Perwin: Yeah. Go ahead.

[00:15:27] Reinaldo J. Aguiar Marcano: So, so this is, this is the -- uh, lemme see how I frame this. This is the, the -- I, I'm gonna, you know, in two minutes, give you a short, uh, overview of the situation, right? Of, of, of this particular issue that I think it's a -- it's gonna be a, a deal breaker. This, this is why I'm bringing this up at the beginning, right? Because without this item, I cannot agree to anything, right? And I know you as a mediation probably heard this every single time, but, but this is really important because it's, it's rooted.

[00:15:59] David S. Perwin: You know what, you're right. I have heard [overlapping 00:16:01] .

[00:16:01] Reinaldo J. Aguiar Marcano: Yeah. Yeah. Everybody comes into mediation, like, you know, like, I'm not going to move one inch from here, but it's not about my position or ego or what I want. It's not -- it's about a legal concept, okay? The issue here is a legal issue, and that's great that you're, you know, former judge and, and, and, and a lawyer registered with the bar because you will have insight into this, right? So this is the issue for me. Uh, my -- so the, the petitioner, um, uh, she filed, a petition for a restraining order against me with the court, okay? Signed by her lawyer. So the two of them filed that right? This restraining order...

[00:16:38] David S. Perwin: Okay.

[00:16:39] Reinaldo J. Aguiar Marcano: ... um, the, the petition, uh, it, the basis for it, they alleged that I'm not in use of my mental capacities and abilities, and that I should be precluded from entering into any kind of legal contract of any kind. I, I -- so they, they, they're asking the judge for a, for a, for a retraining order, so I cannot do anything, I cannot make any decisions, okay? And that

I cannot enter into a legal contract with any party. Now, you see, the issue of capacity from a legal standpoint is critical here, because the, the whole goal of this process of mediation is to get me to enter into a contract, into a legally binding contract with the petitioner. It's a, it's a fundamental contradiction. And I cannot enter into -- I mean, they are saying that I cannot enter, that I should not be able to, or should not be allowed to enter into any kind of legal contract with anybody, right? So what, what I need to be able to proceed with this process is a hand written note from the petitioner, the other party, saying that she does not have any reason to believe that I'm not in use of my mental capacities, right? Because otherwise it would be illegal for me to -- for, for them to get me into a legal contract, because they're saying that I'm not in use of my mental capacities, and then they're, you know, channeling me to, to enter into a contract with them. And that's illegal. It's taking advantage of a crazy person that's typified in the law. And also, um, um, morally speaking, right? Like for you as a mediator, you have the moral duty to uphold the law, and you cannot in good conscious, I think, that's my contention. What I'm saying is my contention, maybe I'm wrong, right? But I think in good conscious and morally by the, you know, the, the principles that, you know, are upheld by the, by the bar of Texas, you cannot try to get a person whose mental capacities and abilities are being, uh, let's say questioned in a court to enter into legal contract with the same people that are questioning the legal capacity of this party. Right? So this is a fundamental issue for us to, you know, even start, uh, negotiating anything, right? Um, and that's why I say that without that I can't -- because I can't, right? Like if, if they already filed that with the court, if they don't give me something in writing that say that they don't -- both of them, right? Don't, um, have any reasons to believe I'm crazy, then you know, the issue of mental capacity has to be addressed by a judge, right? It cannot be addressed by a mediator or by them or by me, right? It has to be addressed by a judge. So we will have to go back to the court anyways, right? So, uh, my proposal

in that case would be, well, let's address the mental capacity problem issue first, and then let's come back to mediation. Is that, is that reasonable?

[00:19:36] David S. Perwin: I'll tell you -- I mean, it's, it, it's right on point. Um, I will tell you, um, if I don't feel -- I, I will, I will tell you, there's a couple things going on here, though, so let me, let me kind of respond to what you're saying. And, and I don't disagree with the logic at all on what you're saying, but, but I want to, I want to at least give you a response, um, A, from my viewpoint. Just because they allege that you aren't mentally competent does not mean that you aren't mentally competent. So [overlapping 00:20:07].

[00:20:07] Reinaldo J. Aguiar Marcano: No. But I, but, but I, but, but I, what I might be. I mean, I'm thinking that I'm, right? And, and I need a judge to tell me if I am or not.

[00:20:14] David S. Perwin: Stop, stop, stop. Hold on. Let, let me, let me, let me give you my whole thing...

[00:20:18] Reinaldo J. Aguiar Marcano: I'm, I'm sorry. Go ahead.

[00:20:20] David S. Perwin: ... first and then you can respond. But I, I, I want to say everything that I want to say because I don't wanna lose my train of thought.

[00:20:26] Reinaldo J. Aguiar Marcano: Got it.

[00:20:26] David S. Perwin: So just because they allege that you are or not competent doesn't mean that you are or aren't. That's an allegation that they're making. That does not mean that that's true or not true. Um, number two, as your mediator, if I feel that you aren't, um, mentally competent to enter into an agreement, that it will be my duty to, uh, recess this until there's a determination made, and it would be, um, my duty to not go forward if I have that, um, impression. Now, I am not a psychologist or a psychiatrist, so I'm not doing a legal finding of competency, even when I'm using my own judgment to determine whether either party is of sound mind, because it's

not just, you know, uh, a diagnosis on whether someone has some type of mental illness. But it's also, it could be if they're under some type of extreme duress or some other, um, situational thing, if I feel like they're not, um, capable of making a good decision, even if it's not mental illness, if I think they're of a mental state in this moment to not make a decision. And that doesn't mean if they're upset because people are upset all the time. I, I wanna make sure that they understand what they're agreeing to and understanding that, uh, of what the consequences are. Not that I can give them legal advice, but they at least need to understand, um, those kind of things. So anyway, but I understand what you're saying is that you can't have it both ways. They can't try to enter into an agreement with you and, and say that at the same time, say you're not legal -- you're not mentally competent. You can't have it both ways. Either, either they need to say that you're competent and they're entering this in good -- trying to negotiate in good faith, or if they're gonna maintain the position that you're not competent, then, then a, a judge would need to make that determination, um, usually after a psychological evaluation. Um, the, the judge is not going to make that just by, uh, hearing evidence. They would have to have something done in that regard. And then once, if the judge determined that you were not competent, then they would appoint an ad litem to represent you. But if they determined you were competent, then that determination would be clear.

[00:22:48] Reinaldo J. Aguiar Marcano: Exactly. Yeah. Yeah. Uh, right on point. Um, but, uh, just to -- you know, and I agree with 99 percent of what you said, only one small clarification, what I said, right? About, uh, your, you know, your potential duties, um, because you're registered, a registered attorney with the bar. I didn't mean that I was expecting -- just to clarify, I know you, you know this, right? Um, like, you know, talking to you, I can tell that you are very intelligent person, right? Um, but I was -- and I, I wasn't implying or saying that, that I, I want you to -- or that I had an expectation that you would make a determination about sanity or insanity, not at all. Or

capacity. Um, 'cause in fact, you know, that's a -- only a psychiatrist can do that, right? Like, not even a judge can do that, as you said, right? The judge would rely on the opinion of experts. It could be a psychiatrist, it could be an FBI agent, right? Like it could be anything, somebody who is qualified to judge...

[00:23:44] David S. Perwin: Well, it couldn't be anything. It couldn't be anything because an FBI agent doesn't necessarily have the qualifications for, for mental health. I mean, the FBI agent...

[00:23:52] Reinaldo J. Aguiar Marcano: No, no, but, but let me tell you why I say that specifically, right? The reason why they're alleging -- um, the reason why they're alleging that I'm crazy is because I reported a group of people to the FBI. Right? That's the reason why they're saying that. Uh, so, you know, to, to judge whether my claims to the FBI were true or false, the only people that can make that call is the FBI, right? Not even a psychiatrist. Like the FBI needs to look at what I said and say, yes, this person is right, or this person is crazy. Right? That, that's, that's the whole contention, is something -- I'm not gonna get into details what it is, but it's something around the FBI. Okay? Now...

[00:24:30] David S. Perwin: Okay.

[00:24:30] Reinaldo J. Aguiar Marcano: Um, so, so that, that's what I'm telling you that like…

[00:24:35] David S. Perwin: But, but even then, the FBI would just say we find there's no merit. It doesn't mean that you're crazy because you might see...

[00:24:41] Reinaldo J. Aguiar Marcano: No, no, no, exactly. Exactly. But, but my position is that there is merit. I mean, I, I'm sure there's merit, right? So...

[00:24:45] David S. Perwin: No, I know. I'm saying this...

[00:24:45] Reinaldo J. Aguiar Marcano: ... my, my, my expectation is that when the FBI says, yes, there is merit, it's obvious that I'm not crazy, right? I'm not expecting the FBI to say that I'm not crazy. I'm expecting the FBI to say, yes, these crimes are occurred. And if that's the case, then I'm not crazy. Like I, I wouldn't even have to go to the psychiatrist for the evaluation.

[00:25:02] David S. Perwin: Okay. But look...

[00:25:03] Reinaldo J. Aguiar Marcano: But that's, that's, that's the -- I'm saying. Uh-huh.

[00:25:06] David S. Perwin: Yes. No. The FBI can have their own agenda. So they could say there's no merit just because they don't want it uncovered. So I don't think the FBI...

[00:25:11] Reinaldo J. Aguiar Marcano: No. That's true. That's true.

[00:25:15] David S. Perwin: ... can make any determination on this. This would, this would have to go to an independent mental health professional to make that determination if, if someone feels like that. The FBI, the police, nobody else has the authority to do that, and you making allegations, uh, of a crime, um, what -- even if they said there was nothing to it, or there was something to it, still wouldn't determine...

[00:25:38] Reinaldo J. Aguiar Marcano: Determine the, the sanity question, legally speaking. I understand. Yeah, understood. Uh, yeah. Thank you for that. So, um, so yeah, so I, you know, I, I agree with you, uh, in, you know, uh, pretty much everything. Um, so, you know, um, the only thing -- the other thing I wanted to clarify is that, you know, the way you phrased it, uh, you said something like, you know, you can't have it both ways. And, you know, I want to be clear. Like it's not -- I'm, I'm not, I'm not using this as a leverage. I'm not at all. I'm, I'm just saying...

[00:26:05] David S. Perwin: No. I'm talking about them. I'm talking about they…

[00:26:07] Reinaldo J. Aguiar Marcano: Yeah, yeah. No, no. Yeah, yeah, yeah. About them. About them, yes, yes. What I'm saying is, um, that, uh, um, because this question of capacity,

mental capacity to enter into legal contracts, right? Was already -- you know, you say it's an allegation, but this was a, a, a petition for a restraining order. This is filed with the court. This is a legal, this is an illegal document with the court, because that allegation exists, right? My contention is that a person that is responsible for uphelding the law cannot -- you know, has to take the -- like, has to error on the caution side, right? Like, uh, um, even trying to negotiate something with a person that has been alleged in a court document that is -- that should not be allowed to enter into a contract. My contention is that just trying to get them to get to -- just trying to negotiate could be a crime on itself. So that, that, that's all I'm saying, right? Um, so my -- the solution to this is simple. The petitioner can send me a handwritten note before we start negotiating anything. Like, I'm not gonna negotiate anything without this, right? Because I cannot -- maybe, maybe they're right, maybe I'm crazy, right? And so I need to talk to a judge, to a person that can make this determination based on -- relying on, on the opinion of experts. Um, so I, I -- if, and, you know, I have to question myself if they're right, just negotiating with them could put me in danger. Like put -- could put my, um, welfare, my financial welfare in jeopardy because I cannot trust my own capacity, right? Because of what they're saying. So the first point that we have to get outta the table is that handwritten note from the petitioner saying that she has absolutely no reason to believe that I'm not in full use of my mental capacity and abilities. If we can get that, you know, I'm open to negotiate anything, open to anything. But if we cannot get that, I think we should cut it short because all our times are valuable. Right?

[00:28:13] David S. Perwin: Okay. Let me ask you this though. Um, just because she says it doesn't mean that it's true or not true. I mean, she may have her own motivation to saying that you're competent so she can take advantage of a disability.

[00:28:28] Reinaldo J. Aguiar Marcano: I understand, but because I, I trust her so much, 'cause remember I was with her for a long time, maybe she's right. I have to consider the possibility that she might be right. And if that is the case, I need to -- a judge, and I need that a judge makes that determination. Like I can't, I can't take my chances on that, right? Because she might be right. She might be right. I, I might be a little bit crazy. Um, and I can't, I can't, I can't gamble with the welfare of my son, you know? So that's why...

[00:28:57] David S. Perwin: No, no. I, I, I get what you're saying, but it sounds to me that you're saying that you will accept her determination on whether you are competent or not to go forward.

[00:29:10] Reinaldo J. Aguiar Marcano: No, no, no, no. Not at all. She's not, she's not a licensed psychiatrist and not an FBI agent, so.

[00:29:16] David S. Perwin: I know. But, but you understand what you just asked me to do though. If I go over there and say, we need you to hand write a note saying that you believe that you -- that, that he is competent, that you're willing to go forward with that, with that letter.

[00:29:35] Reinaldo J. Aguiar Marcano: I'm willing to move forward to the negotiation. Yes.

[00:29:39] David S. Perwin: Right.

[00:29:40] Reinaldo J. Aguiar Marcano: Yeah. Yes, yes. But that doesn't mean that I'm accepting what she wrote. Even if she wrote that...

[00:29:45] David S. Perwin: Well, then why would you go forward?

[00:29:47] Reinaldo J. Aguiar Marcano: Well, I won't go forward because if delegation is that I'm not competent, and honestly to protect you, if I go forward, imagine this situation. If I go forward and negotiate with them, I can't even Imagine, right? I could then tomorrow file a

complaint with the bar saying that you channeled me to enter into a contract agreement with a group of people that allege in a court document that I'm crazy. I, I'm not a lawyer and you know, it's not my place to give legal opinions, but I think that a lawyer could be disbarred for that. So I'm protecting you, in reality. I'm protecting them because I could also go and then make a claim that they took advantage of a crazy person. So for all of us to be safe, right? The best path forward is that there is something in, in, in, in writing that says that they -- that the petitioner has no reason to believe that I'm not in use of my mental capacities. It's just an opinion. She's just expressing an opinion. It's not a judgment, it's not an assessment. I'm not going to use that as a, um, anything. It's just, it's just her opinion. Right? But I want to have it in writing because that way we are all protected. Like there's no crimes being committed, like nobody's violating the moral, um, you know, uh, rules of their profession and we're all happy, right? And we can move forward and we can negotiate this. And I, I'm telling you, I'm very open to negotiate and I'm, I'm willing to be flexible. I want to solve this today, but I can't, I can't enter into any kind of negotiation until she gives me something in writing that says that she's trusting that I'm -- and this is not an unreasonable request. I mean, we're negotiating here a legal contract. I mean, this is just basic, right? This is a very basic, um, concept of law. So I don't think I'm asking for, for, for, you know, for, for a kidney here. Um, this is a very simple request. It, it costs them nothing really to write this hand note.

[00:31:48] David S. Perwin: Okay. Uh, all right. So here's, here's my response to that. Um, I have no problem doing what you're asking me to do. I guess what I'm gonna say though is -- and, and I haven't, through our conversation, I'm, I don't have any indication that, that you're not of the capacity to make a, a negotiation. I'm, and I'm not saying that you're -- I'm asking you to rely on me saying that. I understand that they have made statements about you, um, and they can't have it both

ways in the sense they can't say that and then negotiate with you if they think that you're mentally not competent. Um, that would make the agreement if we reached one...

[00:32:34] Reinaldo J. Aguiar Marcano: Invalid, right? I, I, I could just go back on the agreement tomorrow. Like it, it doesn't...

[00:32:38] David S. Perwin: Correct. Right. That's right. Um, I mean, the court would have to find that determination that you weren't competent...

[00:32:46] Reinaldo J. Aguiar Marcano: Right. But I could fight it. So, and it, it, it puts into question the purpose of all this negotiation, because we're gonna negotiate and spend four hours here, you know, uh, enter into a contract, and then I could go on Monday to the court and file for an, a petition to annul that -- to, to nullify that contract, right? Like I would be within my right to do that. So it, it's a waste of time for everybody, right? So I think that...

[00:33:08] David S. Perwin: I agree.

[00:33:10] Reinaldo J. Aguiar Marcano: Yeah.

[00:33:10] David S. Perwin: Hold on. Let me ask you a quick question. What do I call you?

[00:33:13] Reinaldo J. Aguiar Marcano: My name is Reinaldo Aguiar.

[00:33:16] David S. Perwin: Okay. So...

[00:33:18] Reinaldo J. Aguiar Marcano: You can call me Reinaldo.

[00:33:20] David S. Perwin: Okay. All right. Reinaldo. Okay. I just wanted to get that outta the way 'cause we haven't really talked about that. And so, okay. Look, I understand exactly where you're coming from and, and it's a very strong position that I, I agree with you. I mean, they can't, they can't say, they can't say they want to negotiate with you -- and, and I can't find -- I was trying to see that restraining order that you're talking about, and I don't have a copy of it.

[00:33:48] Reinaldo J. Aguiar Marcano: I, I, I'll -- I can email you a link to it.

[00:33:52] David S. Perwin: Okay. If you could do that, that would be helpful because I mean -- you know, but, but you, and you understand this, what they're doing is they're alleging these things, but they can't have it both ways. They can't say that they believe that you have this, uh, that this mental deficiency and then ask you to sign something agreeing to commit to financial obligations, a parenting plan regarding your son...

[00:34:14] Reinaldo J. Aguiar Marcano: No. Well, I'm not even asking me -- ask me, not even ask me to come to mediation. I mean, I think that on itself, right? It's a -- it, it's questionable. Like how can you say that somebody's crazy and then the judge says, well, go to mediation. Yeah, sure. Let's mediate. I mean, the, the, the lawyer who is a lawyer registered in the bar, I believe her moral duty was to object to what the judge was saying in that very moment and say, no, judge, we can't go to mediation because this person is crazy and we cannot...

[00:34:45] David S. Perwin: Okay, but remember, but remember this though, the attorney does not have any personal knowledge of you at all. She is only a mouthpiece for your, for your wife or your...

[00:34:55] Reinaldo J. Aguiar Marcano: No, no. I, I understand. But, but, but, but she has to assume that allegations are true, right? Because she filed that document with the court, and just by having that assumption, I mean, I mean, any person that -- I mean, if, if, if you really believe, right? If somebody tells you this person is crazy, this person next to you is crazy, and then the same person tells you, let's go negotiate with that person. I mean, the logical answer is, I -- you know, you just said that the person is crazy, right? I mean, the lawyer should have at least questioned the client, or, or, you know, like, and -- but I think, I, I think agreeing -- she agreed in less than a second, right? And this should be recorded in the court hearing. Uh, she agreed immediately. Like she didn't even, you know, looked up to like, think about it. Like no, immediately she said, yeah, sure, sure, sure.

And she started making the, the appointments. And you know, to me, uh, that's, that seems odd, right? But anyhow, I'm not gonna, you know, question the lawyer just...

[00:35:46] David S. Perwin: Well, let me just say this too. Um, and, and, and this does not change at all what you're -- what you want to do and what I'm gonna follow through and, and address that for you. But there are times when, when there are people -- and this is not you, I'm talking about, I'm just telling you that I've been down this road before.

[00:36:05] Reinaldo J. Aguiar Marcano: Okay.

[00:36:06] David S. Perwin: [Indiscernible 00:36:06].

[00:36:06] Reinaldo J. Aguiar Marcano: [Indiscernible 00:36:06], right.

[00:36:08] David S. Perwin: Right. There are times where someone who may have mental issues have, have periods of time of clarity. They're not always mentally off. So, you know, there are those times where someone can have mental issues, but still be -- like if someone wanted to do a will, for example, they may have moments of clarity where they say, hey, I want X person to get this property, this property, this property, and then let's say the next day they can't remember who they are or who they are. So there is times where it can be where someone is mentally off at one time and, and perfectly clear the next, but, you know, that's where it gets really gray...

[00:36:51] Reinaldo J. Aguiar Marcano: Yeah. It's, it's kind of tricky, right? Yeah, no, no, I totally, I totally understand. It's a tricky -- and that's why a judge… Yeah. So I'm sending you right now the, the document, uh...

[00:37:03] David S. Perwin: Okay. Let me -- I want to take a look at it and let's discuss it before I go over there, so.

[00:37:09] Reinaldo J. Aguiar Marcano: Yeah, that sounds like a good, like a good idea. Because it's a sensitive issue, right?

[00:37:15] David S. Perwin: Yeah.

[00:37:15] Reinaldo J. Aguiar Marcano: So I'm gonna tell you verbally, it's, it's paragraph 3, uh, 3B and 3F on the document I'm going to send you. I'm gonna note this in the email anyways.

[00:37:33] David S. Perwin: So this says -- um, some notes that I have says that both of y'all have -- she has a Model S and then you have a truck. And, and we're not going into the negotiations. I'm just -- I was just asking outta curiosity, what kind of Tesla do you have?

[00:37:48] Reinaldo J. Aguiar Marcano: Model S, um, so...

[00:37:50] David S. Perwin: So both of you have S?

[00:37:51] Reinaldo J. Aguiar Marcano: Yes.

[00:37:52] David S. Perwin: Okay. I just got a Tesla in August that's why I was asking you.

[00:37:58] Reinaldo J. Aguiar Marcano: Oh, yeah. It's a nice, it's a nice car, right?

[00:38:01] David S. Perwin: Yeah. Well, I've got the cyber truck and, um, and I, and I love, I love the truck. I love, you know, the, the speed and the ease of steering and the uniqueness of it. Um, my wife didn't want to get in it. She said it was so ugly, but...

[00:38:19] Reinaldo J. Aguiar Marcano: Yeah. It's a, it's a, it's a divisive subject, right? Like some people love it. Some people -- exactly. Some people hate it. Uh...

[00:38:27] David S. Perwin: Yeah. But once she wrote in it, she, she really liked it. So that, that was good. So...

[00:38:32] Reinaldo J. Aguiar Marcano: Okay, let me ask you a question. What is, what is your email address? Because I have -- so I have Becky's, but I don't have yours.

[00:38:38] David S. Perwin: Yeah. So just switch Becky's name out for David. So david@perwinaguirre.com.

[00:38:44] Reinaldo J. Aguiar Marcano: Okay, perfect. David

[00:38:48] David S. Perwin: And I did see an email from you, but...

[00:38:50] Reinaldo J. Aguiar Marcano: Yeah, yeah. But I, I, I don't have access to that email address and, um, I mean, it's a different account and I don't have it in this computer, and that's why -- so I'm, I'm gonna email you from a different email address, which is my personal email address. Uh, okay. Um...

[00:39:06] David S. Perwin: Okay, so the one that aguiar@reinaldo.ca, I just sent you an email too, so if you can't find mine, you can respond back to that one if you have access to that.

[00:39:19] Reinaldo J. Aguiar Marcano: Let me see. No, I didn't receive that one here, but, okay. But I'll, I'll send it, I'll send it, I'll send this, um, I'll send -- I, I have the email already drafted. I'm, I'm sending this to you right now.

[00:39:31] David S. Perwin: Okay. Okay.

[00:39:34] Reinaldo J. Aguiar Marcano: Yeah, no worry. Okay, so we said 3B and 3F. Yes.

[00:39:43] David S. Perwin: Now if -- and, and this is kind of getting way ahead of the thing, but if, if we resolve the mental capacity issue and if we were to reach an agreement, is the email that I sent to you not the one, the correct email to send?

[00:40:00] Reinaldo J. Aguiar Marcano: Um, I mean, yes, I have access to that email, but how do I say this...

[00:40:05] David S. Perwin: Oh, you did send me an email.

[00:40:06] Reinaldo J. Aguiar Marcano: Yeah, yeah, I sent you -- yeah, the thing is that I have two, I have two email addresses, and one of them is in a different computer that is in, in my office. And I don't use that, uh, for security reasons, I don't use that email address outside of the office. Um, and the one that...

[00:40:19] David S. Perwin: [Overlapping 00:40:19] at 3 in the morning, did you sleep today?

[00:40:22] Reinaldo J. Aguiar Marcano: Yeah, a little bit. I, I slept like four hours. Um, but I sent -- I was at the office when I send you that, that's why I sent it from there. Uh, but now I'm, I'm home, so I'm gonna use the email that I use from home. But either one, like if you, if you -- but if, if, if it's something time sensitive, I'm just saying this in case, you know, this extends beyond today or whatever, and you need to reach me, if it's time sensitive, use the one that I'm going to use right now because I have that on my cell phone, right? I, I can access it, that anytime. But the other one -- that's the reason why I made the payment last night or early this morning because that I hadn't gone to the office in a, in a, in a few days, and I didn't see your email about the payment. I saw it last night when I was there. Um, that's why I, I made the payment late, basically two, two hours late. Um, but, but anyhow, I have the email here, I'll send it to you and, and then I guess you're gonna go to that room and uh, I'll see you when you get back, right?

[00:41:14] David S. Perwin: Yeah, but I wanna, I wanna look at the, the restraining order and talk to you about it first, or at least discuss. I want to see it first before I go over there.

[00:41:23] Reinaldo J. Aguiar Marcano: Okay.

[00:41:24] David S. Perwin: So if you could send that to me, and I'll see if I -- the, the court -- um, our district clerk is not doing the greatest job of, um, making -- I know for some people they're glad that no one can see any files in there, but for attorneys who want to try to understand what case they're working on, we can't access...

[00:41:43] Reinaldo J. Aguiar Marcano: Yeah. No. And this one -- oh, I got your email. I got your email because I forwarded, yeah. Um, yes, yes, you're right. And this -- you wouldn't even,

you know, regardless of the clerk, uh, you wouldn't be able to see it because they marked it as, you know, containing sensitive information because they, they -- so it's...

[00:41:59] David S. Perwin: Anything that has a child's name is considered, uh, sensitive. So...

[00:42:03] Reinaldo J. Aguiar Marcano: Yeah, but they, they could have redacted it, redacted the name of the child with the auto-redact tool and then make it [overlapping 00:42:08].

[00:42:08] David S. Perwin: If you file, if you file it redacted, then it really isn't a complete document. Okay. So I'm looking at the restraining order now. Um, and what section did you want to direct me to?

[00:42:22] Reinaldo J. Aguiar Marcano: So, well, this is very clear. I think 3F is the second page I think it is. Uh, it says order, Reinaldo Aguiar -- uh, it says, "Ordering the psychiatric evaluation of Reinaldo Aguiar Marcano." Uh, that's...

[00:42:35] David S. Perwin: Yeah. So if you look at 3, 3 itself, it says, "Petitioner requests the court after notice of the hearing to do the following." So they're asking...

[00:42:47] Reinaldo J. Aguiar Marcano: Right, but in -- on the, on the nominal F on the page, uh, 3, so yes, they're asking for a number of things, right?

[00:42:56] David S. Perwin: They're asking the court to order it.

[00:42:57] Reinaldo J. Aguiar Marcano: Right. No, no, I understand. No, the, the, the, the restraining -- or like the, the, the judge hasn't ordered a psychiatric evaluation yet, but they asked for it and for me that's enough.

[00:43:06] David S. Perwin: That's right.

[00:43:07] Reinaldo J. Aguiar Marcano: Right.

[00:43:07] David S. Perwin: That's right. Yeah. So if you don't have the mental capacity to do something with your child, how do you have the mental capacity to dispose of your property?

[00:43:17] Reinaldo J. Aguiar Marcano: No. Or even to negotiate, right? I mean, not even, I mean...

[00:43:22] David S. Perwin: Yeah, I was just -- I, I guess I said it -- you said it better than I did as far as on anything. It's not just the child. I just separated, you have children issues and property issues. So that's why I said it that way. So you can't say that you have the mental capacity to negotiate property if you're saying that he doesn't have the mental capacity to even have a parenting plan regarding his child.

[00:43:44] Reinaldo J. Aguiar Marcano: Right. Exactly.

[00:43:46] David S. Perwin: You can't have it both ways. Okay. All right. So what I'm gonna do, is I'm gonna go over there and address that with them. And I'm just gonna tell you my thought on this is, is that I think there should be an evaluation done before we do anything.

[00:44:03] Reinaldo J. Aguiar Marcano: And I agree. Yeah.

[00:44:04] David S. Perwin: And then so, if they say everything is fine, then we can go forward and then they can drop their claim, and if not, then the court would have to make a decision on what they're going to do.

[00:44:18] Reinaldo J. Aguiar Marcano: No, no. And I, yeah, I agree with you, right, in principle. Um, but the other, I mean, the other -- the, the trade off for me is the welfare of the child, right? If, you know, if, if they're willing to, uh, you know, give me that piece of paper and we can negotiate and resolve this today, and I'm able to see my child, that's a win for me. Right? That's all I need. Uh, I don't -- that, that would allow me to not drag this for a year. Right? Um, but if that's

impossible, if they cannot, you know, meet this basic simple requirement, then you know, I'll have to...

[00:44:53] David S. Perwin: She is not concerned that you're going to harm your child. She's already told me that.

[00:44:58] Reinaldo J. Aguiar Marcano: No, no, no, no. I understand. You know, like, I, I, I, I would like to like make the separation...

[00:45:02] David S. Perwin: You need a written, written declaration, correct?

[00:45:04] Reinaldo J. Aguiar Marcano: Right. And as I said, right, I could go back on Monday on the, on the, on the contract. I could go on Monday to the court and apply to have it nullified, right? Like, it, it's a waste of time for everybody, right? Uh, so for this contract to be sound and binding and legally, you know, correct, we need this requirement because they have already made that allegation with the court. I mean, this is on them, right? They made that allegation.

[00:45:29] David S. Perwin: That's a, that's a good point. All right, I'm gonna go over there and address that with them. So hang in there. It might take a little while to negotiate that or...

[00:45:37] Reinaldo J. Aguiar Marcano: I understand.

[00:45:38] David S. Perwin: Okay. Reinaldo, are you there?

[00:45:42] Reinaldo J. Aguiar Marcano: Yes, I'm here.

[00:45:44] David S. Perwin: All right. Sorry for the delay. We, we had a lot to talk about, and I want to kind of, kind of tell you kind of where I think things are gonna land as far as this. So she, she does have concerns, about the mental capacity, and obviously it's not -- it's, it's -- I'm, I'm taking it from a caring standpoint, not from one of, some type of negative, you know, uh, label on you.

[00:46:19] Reinaldo J. Aguiar Marcano: Oh, no, no, no. Don't, don't, don't, don't worry. Like, you know, no need to -- like, I, I don't take these things personally. So I understand what you're saying. Well, uh, please finish. I, I don't wanna put any, any words in your...

[00:46:29] David S. Perwin: And, and, and so and so to me, I think if, if there's an assessment being made, if, if you are willing to agree to that, or even if you weren't, I really think that a court, the court would need to appoint somebody to have you go to, to do that assessment. And I don't think until the results of that assessment come out, we can do anything. I can't even get -- I don't even feel comfortable asking you to agree to assessment because that is a conflict, um, directly with what we're talking about.

[00:47:02] Reinaldo J. Aguiar Marcano: Exactly. No, no, I, I congratulate you. Like, um, you know, you're really taking the, the -- how do I say this? You are taking the -- you know, you're holding the law, you're doing what you're supposed to do. Um, and then you're -- I agree completely with you. This is something that should be reviewed by a judge and, um, and he should decide what is the best course of, of action, right? Like, until that happens, you know, wasting time and energy and causing friction with you people.

[00:47:32] David S. Perwin: Right. And so this is what I told them we would do, is, is that I'm gonna pass the mediation. And then what I told them is that once the assessment is done, then, you know, we were scheduled for four hours. So what I told them that I would do is I would, the two hours that we didn't use, I would apply them. If, if, if, if everything comes back fine, or even if they don't, the court will probably at some point return you to mediation. I will apply those two hours...

[00:48:00] Reinaldo J. Aguiar Marcano: Wonderful.

[00:48:00] David S. Perwin: ... to a future mediation. I'm not going to just say, oh, I used up -- you know, 'cause even though I blocked my morning, I can't make money doing -- I'm not taking that position. What I'm saying is I'll [overlapping 00:48:11]…

[00:48:11] Reinaldo J. Aguiar Marcano: I appreciate that.

[00:48:11] David S. Perwin: … and apply it to a future...

[00:48:13] Reinaldo J. Aguiar Marcano: To a future mediation if, if that's the case, I understand that. And if, if that's not the case, then you know, please keep the clip, keep the two hours. Like you know. It's...

[00:48:21] David S. Perwin: Well, I, I want to earn my money. So that's kind of what the thing is, that you will -- at some point, you will have to come back to mediation. I know that 100 percent. Unless you, unless you all reach an agreement without it. So if y'all reach an agreement without it, then, then of course you wouldn't have to, and that would probably be a plus for everybody, but...

[00:48:39] Reinaldo J. Aguiar Marcano: Yeah. No, no...

[00:48:40] David S. Perwin: But if you had to come back for mediation, I'm gonna have my office manager, Becky, make a note that you have a two hour credit, um, to a future mediation. And then I'm gonna let you know that her, her attorney is going to set a motion, uh, to ask the court to appoint someone, and then you'll have the opportunity to be present. And if you want to object to it or if you want to agree to it, or whatever it is you want to, you'll have -- you'll be noticed and have the right to, you know, respond to, to that.

[00:49:10] Reinaldo J. Aguiar Marcano: Okay. Um...

[00:49:11] David S. Perwin: But we can't get an agreement, I can't do anything. So that has to happen on the judge's own action. It can't be by agreement.

[00:49:18] Reinaldo J. Aguiar Marcano: Yeah. If I, if I may ask you, uh, one favor, could you update -- well, I can ask your office manager to update my address because I'm in a different address now than the one that you probably have. Um, so I'll, I'll, I'll do that. I'll update my address with the court and with your office manager and all that. Okay.

[00:49:34] David S. Perwin: I mean, I mean, they don't notice you -- I mean, normally they notice you by, uh, by email. You don't get notices by email?

[00:49:40] Reinaldo J. Aguiar Marcano: Oh, no, no, but because you said that I'm gonna be -- that she's going to file a petition, right? That means that I'm going to be serviced.

[00:49:47] David S. Perwin: No, not a petition. It's, it's gonna be a motion, it'll be a motion for, you know, a, a psychological evaluation.

[00:49:56] Reinaldo J. Aguiar Marcano: Right. Right. Uh, but, but there's gonna be a, there's gonna be a legal service, right? There's gonna be a legal service.

[00:50:01] David S. Perwin: No, no, hold on. That's, that's what I'm trying to explain to you. The service on that will be by the email, whatever email that you...

[00:50:08] Reinaldo J. Aguiar Marcano: Okay. Got it. eFiling. Okay.

[00:50:10] David S. Perwin: Yeah. You're not served in person on that, on this motion. You're, you're sent an email. If you're e-served, um, whatever email addresses is connected to you in the case is how you'll be noticed.

[00:50:22] Reinaldo J. Aguiar Marcano: Right. Right. No, no, I, I, I, I understand that concept. The thing is that the, the last [overlapping 00:5026].

[00:50:26] David S. Perwin: Okay, I thought you were talking about the process server coming to you, to your house...

[00:50:30] Reinaldo J. Aguiar Marcano: Yes. Because, yes, because when, like, when they filed the petition, right? Although they could have served me electronically, they choose to send the process server, and the man transpassed and there was a whole incident, he was provoking me in my own home, and I want to prevent that from happening again. So that's why I was concerned about the others. Right?

[00:50:49] David S. Perwin: Right. Yeah. Hold on one second though. Your petition, the petition for divorce, is that what you're talking about?

[00:50:57] Reinaldo J. Aguiar Marcano: The petition for divorce and the motion for the restraining order and the injunction, injunctive orders. And like, there was a series of legal instruments they filed, and the petitioner had my email address that she has had it for 11 years, but they choose to send this man in person to trespass the property lines and ignore the, no trespassing, sign and all those things, in person. Right? Uh, so that's what I'm concerned. I don't, I don't want that to happen again.

[00:51:20] David S. Perwin: Hold on. Hold on. One second. The petition had to be served in person. They cannot e-serve you the initial petition and, and, and notice of a restraining order that was signed by the court. Those have to be done in person.

[00:51:34] Reinaldo J. Aguiar Marcano: Oh, okay. I understand.

[00:51:35] David S. Perwin: Once that petition -- once you've been served in person with the initial pleadings, mostly everything else can be done by e-serve, but not the initial one. So just so you know, I don't think that that -- there isn't -- and I'm, and I'm -- I haven't discussed this with them, I'm just telling you the basic law for what we're dealing with, is that you have to be served with that to, um, because that, that confirms that you were actually given notice of the lawsuit.

[00:52:02] Reinaldo J. Aguiar Marcano: No, no. I, I, I, I understand.

[00:52:04] David S. Perwin: And then once you, once you file the response, then they can, then they can e-serve you mostly everything else. There are, there are a few exceptions, but I'm not gonna waste your time with the exceptions...

[00:52:11] Reinaldo J. Aguiar Marcano: Okay. But, but, but now that you're gonna -- sorry, if I may ask you for a favor, now that you're gonna communicate to them in some capacity in the future, if you can, please ask them to not send anybody in person to my home. Is that feasible?

[00:52:24] David S. Perwin: I will, I will do that.

[00:52:26] Reinaldo J. Aguiar Marcano: Okay. Thank you.

[00:52:28] David S. Perwin: Now, just so you know, certain things, like let's say there's a restraining order, some things they can't do it by e-service because there's...

[00:52:38] Reinaldo J. Aguiar Marcano: Because of the gravity. Right. No, I understand that.

[00:52:41] David S. Perwin: They have to know that you received it. But I will tell them. Um, and do they have the email, has she communicated with you already through an email...

[00:52:49] Reinaldo J. Aguiar Marcano: Oh, yeah. She, she, she, she texted me this morning, like she has my cell phone, my email address, you know, like I saw her…

[00:52:54] David S. Perwin: I'm not talking about text, I'm talking about email.

[00:52:57] Reinaldo J. Aguiar Marcano: Yeah, yeah. She has all my electronic, you know, communication...

[00:53:00] David S. Perwin: Who, who is, who is, who is she?

[00:53:03] Reinaldo J. Aguiar Marcano: Both the attorney, uh, partner.

[00:53:06] David S. Perwin: Okay. Right. I, yeah, I'm not talking about your, your soon, your -- I don't even know if I wanna call her your ex, uh, Gloria. Um, all I care, as long as the attorney has a good email for you, that's all I want to make sure of.

[00:53:18] Reinaldo J. Aguiar Marcano: Yeah, yeah, she does. She does.

[00:53:18] David S. Perwin: So I'll let her know to communicate with you through that email that she already has for you.

[00:53:23] Reinaldo J. Aguiar Marcano: Perfect. Yes. That's agreeable.

[00:53:25] David S. Perwin: Okay. All right. That's what I'm gonna do. You're 100 percent right. We should not go forward. Um, uh, it, it doesn't make any logical or legal sense to do so at this time. Um, and then they're going to, um, I guess ask -- uh, the court will have to figure out who would be the proper person to do the assessment and then, uh, and then -- you know, just so you know, she -- you know, I know that Gloria, at least in what I've read, um, is, is somewhat concerned about her financial situation. Just understand that, you know, that may be something that she may deal with you directly to try to -- you know, it, it sounds like, um, she's had some money, but she doesn't know when she'll have money or not have money. And while the case is pending, she may reach out to you to try to get some financial support, while this is pending. But that's, as I told her, that's between you guys on how y'all work that out. That's not for me to do at this point.

[00:54:27] Reinaldo J. Aguiar Marcano: Of course. Of course. I understand. Yeah. And thank you so much for the heads up.

[00:54:30] David S. Perwin: Yeah. All right. I'm gonna go ahead and impasse it and, uh, and I hope -- I, I'd love to talk to you again in the future and I hope that, unfortunately it'll be under these circumstances, but I want to be able to help you guys. I feel like I pushed y'all the right

direction, but I haven't -- I don't feel like I've completed what I, what I want to do to try to help y'all. So hopefully I'll have that opportunity in the future.

[00:54:51] Reinaldo J. Aguiar Marcano: Thank you so much, sir. I really appreciate your time and again, I congratulate you for, you know, for, for, for making the right call. Thank you so much.

[00:54:59] David S. Perwin: Well, thank you. I appreciate that. Have a great uh, afternoon and good weekend for you.

[00:55:03] Reinaldo J. Aguiar Marcano: You too. Thank you so much. Bye-bye.

[00:55:04] David S. Perwin: Sure. Bye.

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